

ALITO, J., dissenting

impossible to believe that all these cases would have resulted in mistrials if unanimity had been demanded. Instead, after a vote of 11 to 1 or 10 to 2, it is likely that deliberations would have continued and unanimity would have been achieved.

Nevertheless, the plight of defendants convicted by non-unanimous votes is important and cannot be overlooked, but that alone cannot be dispositive of the *stare decisis* question. Otherwise, *stare decisis* would never apply in a case in which a criminal defendant challenges a precedent that led to conviction.

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The reliance in this case far outstrips that asserted in recent cases in which past precedents were overruled. Last Term, when we overturned two past decisions, there were strenuous dissents voicing fears about the future of *stare decisis*. See *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U. S. 230, 258–261 (2019) (BREYER, J., dissenting); *Knick v. Township of Scott*, 588 U. S. 180, 221–224 (2019) (KAGAN, J., dissenting). Yet in neither of those cases was there reliance like that present here.

In *Franchise Tax Board*, the dissent claimed only the airiest sort of reliance, the public’s expectation that past decisions would remain on the books. 587 U. S., at 260–261 (opinion of BREYER, J.). And in *Knick*, the dissent disclaimed any reliance at all. 588 U. S., at 223–224 (opinion of KAGAN, J.). The same was true the year before in *South Dakota v. Wayfair, Inc.*, 585 U. S. 162 (2018), where the dissent did not contend that any legitimate reliance interests weighed in favor of preserving the decision that the Court overruled. *Id.*, at 191 (opinion of ROBERTS, C. J.). And our unanimous decision in *Pearson v. Callahan*, 555 U. S. 223, 233 (2009), found that no reliance interests were involved.

In other cases overruling prior decisions, the dissents claimed that reliance interests were at stake, but whatever